

analogy to the duration of a regular entail under a common law conveyance) to fetter the *alienation* of property for a life or lives in being and twenty-one years; and the power of preventing the *enjoyment* of property, by directing an accumulation of the annual proceeds, is restricted to the same period. If the trust exceed this boundary it is void *in toto*, and cannot be cut down to the legitimate extent (*d*).

Phipps v. Kelynge. — But no objection exists on the ground of a perpetuity, where rents, though directed to be accumulated, are applicable as a vested interest *de anno in annum*. Thus, where a testatrix devised a term which had thirty-three years to run, upon trust, from time to time, to lay out the profits in the purchase of lands to be settled upon A. for life, remainder to B. in tail, remainders over, here, inasmuch as the *cestuis que trust* could at any time call for the investment of the rents in land, and when B. attained his age, and could suffer a recovery, A. and B. were entitled to call for the assignment of the lease, it was held the trust was [*90] good (*e*). And generally, although *there be an accumulation directed, which might by possibility extend beyond a life in being and twenty-one years, yet if

(*d*) *Marshall v. Holloway*, 2 Swans. 432; *Lord Southampton v. Marquis of Hertford*, 2 V. & B. 54; *Curtis v. Lukin*, 5 Beav. 147; *Boughton v. James*, 1 Coll. 26; S. C. on appeal, 1 H. L. 406; *Browne v. Stoughton*, 14 Sim. 369; *Scarisbrick v. Skelmersdale*, 17 Sim. 187; *Turvin v. Newcombe*, 3 K. & J. 16; [*Cochrane v. Cochrane*, 11 L. R. Ir. 361.]

(*e*) *Phipps v. Kelynge*, 2 V. & B. 57, note (*b*). In *Curtis v. Lukin*, 5 Beav. 147, the accumulation was held to be void, as the respective interests of the parties could not be ascertained until the time of renewal arrived. The parties might or might not agree upon a distribution amongst themselves during the interim, but this could not affect the legal construction.

Amory v. Lord, 5 Seld. 403; the possibility of illegal accumulation determines the validity or invalidity of it; *Hawley v. James*, 5 Paige, 318; the interest on a legacy illegally accumulated goes into the residue as capital; 1 *Jar. on Wills*, 292; *Hull v. Hull*, 24 N. Y. 647: and the income of accumulations are subject to the same rules as the accumulations; *Jar. on Wills*, 292; in many of the states the rules regarding accumulations are changed by statute; where there are no controlling statutes, if an unconditional gift to charity be made, it will be regarded as good, and the income will be distributed in charity and will not go to the next of kin; *Gray on Perpetuities*, 404; *Odell v. Odell*, 10 Allen, 1; *American Academy v. Harvard College*, 12 Gray, 582; *Att'y Gen'l v. Butler*, 123 Mass. 304; *Levy v. Levy*, 33 N. Y. 97; *Wilson v. Lynt*, 30 Barb. 124; *Tainter v. Clark*, 5 Allen, 66; *Williams v. Williams*, 8 N. Y. 525; *Hillyard v. Miller*, 10 Pa. St. 326.